

IN THE HIGH COURT OF JUDICATURE AT BOMBAY**CIVIL APPELLATE JURISDICTION****WRIT PETITION (ST) NO. 24587 OF 2022**

Ansari Abdul Khalik Mohammad ... Petitioner.
V/s.
The State of Maharashtra & Ors. ... Respondents.

WITH
WRIT PETITION NO. 13256 OF 2022

Subhashchandra Ratilal ... Petitioner.
V/s.
The State of Maharashtra & Ors. ... Respondents.

WITH
WRIT PETITION NO. 13177 OF 2022

Madhukar Krushnarao Deore ... Petitioner.
V/s.
The State of Maharashtra & Ors. ... Respondents.

WITH
WRIT PETITION NO. 13162 OF 2022

Jadhav Dilip Bhikaji ... Petitioner.
V/s.
The State of Maharashtra & Ors. ... Respondents.

WITH
WRIT PETITION NO. 13166 OF 2022

Keda Namdeo Suryavanshi ... Petitioner.
V/s.
The State of Maharashtra & Ors. ... Respondents.

Mr. Alankar Kirpekar a/w Mr. Ayush Tiwari & Mr. Sanjay Shinde for the Petitioners.

Mr. Shrinivas S. Patvardhan a/w Mr. Akshay Hardas for Respondent Nos. 2 and 3 in all the Petition except WP/13770/2024.

Mr. A.A.Alaspurkar, AGP, for the Respondent-State.

**CORAM : A. S. GADKARI AND
KAMAL KHATA, JJ.**

DATE : 7th January 2025.

P.C.:-

1) The Petitioners claim to be the tenants of Respondent No.4.

The said fact is disputed by Respondent No.4.

2) By the present Petition, the Petitioners have impugned Notices dated 23rd October 2020 and 24th February 2022 issued under Section 52/53 of the MRTP Act with a specific contention that the suit structure is constructed without taking any permission, therefore it is an illegal structure.

3) If the Petitioner claiming to be the tenant of Respondent No.4 succeeds in proving the said fact before the Court of competent jurisdiction, then in that event his rights are protected under the Maharashtra Rent Control Act being a tenant and if the Petitioner fails to prove the same, vice versa action as contemplated under the law will follow.

4) In the case of Anandrao G. Pawar v/s. Municipal Corporation of

Greater Mumbai and Others reported in 2023 SCC OnLine Bom 2534, referring to the Supreme Court decision in Shaha Ratansi Khimji & Sons v/s. Kumbhar Sons Hotel Pvt Ltd. reported in (2014) 14 SCC this Court reiterated the fact that a tenanted building is brought down does not mean that a tenancy is extinguished or comes to an end.

5) In view of the above, if the Petitioner succeeds in proving the fact that he is /was tenant of Respondent No.4, his rights under the Rent Act are well protected.

6) Recently, the Hon'ble Supreme Court in the case of Rajendra Kumar Barjatya and Another v/s. U.P. Avas Evam Vikas Parishad and Others reported in 2024 SCC OnLine SC 3767 particularly in paragraph No.20 has held as under:

“20. In the ultimate analysis, we are of the opinion that construction(s) put up in violation of or deviation from the building plan approved by the local authority and the constructions which are audaciously put up without any building planning approval, cannot be encouraged. Each and every construction must be made scrupulously following and strictly adhering to the Rules. In the event of any violation being brought to the notice of the Courts, it has to be curtailed with iron hands and any lenience afforded to them would amount to showing misplaced sympathy. Delay in directing rectification of illegalities, administrative failure, regulatory inefficiency, cost of construction and investment, negligence and laxity on the

part of the authorities concerned in performing their obligation(s) under the Act, cannot be used as a shield to defend action taken against the illegal/unauthorized constructions. That apart, the State Governments often seek to enrich themselves through the process of regularisation by condoning/ratifying the violations and illegalities. The State is unmindful that this gain is insignificant compared to the long-term damage it causes to the orderly urban development and irreversible adverse impact on the environment. Hence, regularization schemes must be brought out only in exceptional circumstances and as a onetime measure for residential houses after a detailed survey and considering the nature of land, fertility, usage, impact on the environment, availability and distribution of resources, proximity to water bodies/rivers and larger public interest. Unauthorised constructions, apart from posing a threat to the life of the occupants and the citizens living nearby, also have an effect on resources like electricity, ground water and access to roads, which are primarily designed to be made available in orderly development and authorized activities. Master plan or the zonal development cannot be just individual centric but also must be devised keeping in mind the larger interest of the public and the environment. Unless the administration is streamlined and the persons entrusted with the implementation of the act are held accountable for their failure in performing statutory obligations, violations of this nature would go unchecked and become more

rampant. If the officials are let scot-free, they will be emboldened and would continue to turn a nelson's eye to all the illegalities resulting in derailment of all planned projects and pollution, disorderly traffic, security risks, etc.”

[emphasis supplied]

6) In this case, the landlord and the Corporation assert that, the structure occupied by the Petitioners is illegal. According to us, the tenant has no independent right to challenge the Notice under Section 52/53 alleging that the suit structure is authorised — it is for the landlord to defend the said Notice. We are therefore not inclined to entertain the Petitions. Petitions are accordingly dismissed.

7) Mr. Kirpekar, learned counsel appearing for the Petitioners in the above Writ Petitions, on instructions submitted that, the Petitioners will remove the offending structure as mentioned in the Notice dated 23rd October, 2020 issued by the Corporation at their own cost within a period of 8 weeks from today.

7.1) He submitted that, the said structures will be removed under the supervision of the Authorised Officer of the Respondent-Corporation who will certify its demolition/removal. The said statement is accepted as undertaking given to this Court.

8) In view of the above, these Petitions are disposed off.

- 9) The Corporation to file compliance Affidavit by 11th March, 2025.
- 10) List the matter on 14th March, 2025.

(KAMAL KHATA, J.)

(A.S. GADKARI, J.)